

Ambrose 387

<i>Latin</i>	<i>English</i>
## Explanatio super psalmos, in Ps. 40 §§ 29–30 — ubi Petrus, ibi ecclesia (CSEL 64, pp. 249–250) [[p. 249]] 29. Accipe et aliud, cur retrorsum cecidit. post ipsum omnes, nemo ante ipsum. cecidit ergo non sibi, sed omnibus, ut duritiam cordis nostri super nos cadendo molliret. cecidit super Adam, quem quaerebat, ut inueniret. retro eum quaesiuit, ut supra umeros suos bonus pastor inponeret secumque paradiso in illius redemptione latronis inueheret. 30. Sed forte dicas: ‘et persecutores ceciderunt retrorsum; sic enim scriptum est, quia principes sacerdotum, quos adduxerat proditor Iudas, et ceteri, qui ad comprehendendum aduenerant dominum Iesum, abierunt retrorsum et ceciderunt in terram’. hoc est quod et ego dico, quia super peccatores uoluit cadere, non super iustos; iustus enim medico non indiget, sed peccatores. si apostolorum umbra sanabat, quanto magis caro Christi quos tangit a morte defendit! denique leprosum tetigit et sine dilatione mundauit. ut scias autem qui legis, quia et persecutores suos uoluit liberare, testem Christi interroga. nam cum inueheretur Petrus in Iudaeos, quod principem uitae interfecissent,	## Explanatio super psalmos, in Ps. 40 §§ 29–30 — ubi Petrus, ibi ecclesia (CSEL 64, pp. 249–250) [[p. 249]] 29. Take another reason too, why he fell backward. After him [come] all, none before him. He fell, then, not for himself but for all, that by falling upon us he might soften the hardness of our heart. He fell upon Adam, whom he was seeking, that he might find him. He sought him out behind, that as the good shepherd he might set him upon his own shoulders and carry him with himself into paradise in the redemption of that thief. 30. But perhaps you will say: “The persecutors too fell backward; for so it is written, that <i>the chief priests, whom the traitor Judas had brought, and the rest who had come to seize the Lord Jesus, went backward and fell to the ground.</i>” This is exactly what I too say: that he willed to fall upon sinners, not upon the righteous; for <i>the righteous man has no need of a physician, but sinners do.</i> If the apostles’ shadow healed, how much more does the flesh of Christ defend from death those whom it touches! Indeed he touched the leper and cleansed him without delay. But that you who read may know that he willed to set free even his own persecutors, question the witness of Christ. For when Peter inveighed against the Jews, because they had killed <i>the author of life</i>, he pointed to the remedy — that they should do penance and deserve to have forgiven

<i>Latin</i>	<i>English</i>
remedium demonstravit, ut agerent paenitentiam et remitti sibi peccatum quod admiserant mererentur. quid autem dubitas, quod ideo cecidit, ut resuscitaret, cum ipse dixerit: percutiam et sanabo? uerborum tamen uideto distantiam. in Genesi habet: [[p. 250]] cadet eques retrorsum salutem expectans a domino, hoc est ut oculos non auertat a deo, mentem propriam non reflectat, resurrectionis suae praerogatiuam uindicet et diuina se resuscitet potestate. hic autem habet: abierunt retrorsum et ceciderunt in terram. qui terrenus est in terram cadit, qui caelestis caelo inhaeret. etsi corpore cadit, uirtute non cadit, sed quae sursum sunt semper intendit; semper enim ad patrem respicit, ut eius circa nos impleat uoluntatem. utinam et isti non abissent retrorsum, sed Christum excepissent, sicut excepit Ioseph et sepeliuit eum in monumento nouo! qui fidelis est in terram non cadit, qui infidelis cadit et descendit in inferiora terrarum, sicut scriptum est: descendant in infernum uiuentes. ergo persecutor super terram et in infernum cadit, Christus super resurrecturos, Christus super petram, Christus super ecclesiam. audi quomodo super ecclesiam cadat. retro erat Petrus et sequebatur eum, cum a Iudaeis ad Caiphae domum synagogae principis duceretur. ipse est Petrus cui dixit: tu es Petrus, et super hanc petram aedificabo ecclesiam meam. ubi Petrus, ibi ergo ecclesia, ubi ecclesia, ibi nulla mors, sed uita aeterna. et ideo addidit: et portae inferi non praeualebunt ei, et tibi dabo clauis regni caelorum. beatus Petrus, cui	them the sin they had committed. Why then do you doubt that he fell for this very purpose, that he might raise up, since he himself has said: <i>I will strike and I will heal?</i> Yet mark the difference of the wording. In Genesis it has: [[p. 250]] <i>the horseman shall fall backward, awaiting salvation from the Lord</i> — that is, that he may not turn his eyes away from God, may not bend back his own mind, may claim the prerogative of his own resurrection and raise himself by divine power. But here it has: <i>they went backward and fell to the ground</i>. He who is earthly falls to the earth; he who is heavenly cleaves to heaven. Even if he falls in body, he does not fall in virtue, but ever strains toward the things that are above; for he ever looks to the Father, that He may fulfil His will concerning us. Would that these men too had not gone backward, but had received Christ, as Joseph received him and buried him <i>in a new tomb!</i> He who is faithful does not fall to the earth; he who is unfaithful falls and descends into the lower parts of the earth, as it is written: <i>let them go down alive into hell</i>. Therefore the persecutor falls upon the earth and into hell; Christ [falls] upon those who are to rise again, Christ upon the rock, Christ upon the Church. Hear how he falls upon the Church. Peter was behind and was following him, when he was being led by the Jews to the house of Caiaphas, the ruler of the synagogue. This is that Peter to whom he said: <i>Thou art Peter, and upon this rock I will build my Church</i>. ubi Petrus, ibi ergo ecclesia, ubi ecclesia, ibi nulla mors, sed uita aeterna — Where Peter is, there therefore is the Church; where the Church is, there is no death, but life eternal. And therefore he added: <i>and the gates of hell shall not prevail against it, and to thee I will give the keys of the kingdom of heaven</i>. Blessed Peter, against whom the gate of hell did not

<i>Latin</i>	<i>English</i>
non inferorum porta praeualuit, non caeli porta se clausit, sed e contrario destruxit inferni uestibula, patefecit caelestia. in terris itaque positus caelum aperuit, inferos clausit. ## De excessu fratris I §§ 43–48 — the Satyrus test: in agreement with the catholic bishops, that is, with the Roman church (CSEL 73, pp. 232–236) [[p. 232]] 43. Quid igitur observantiam eius erga dei cultum praedicem? Qui priusquam perfectioribus esset initiatus mysteriis, in naufragio constitutus, cum ea, [[p. 233]] qua veheretur, navis scopuloso inlisa vado et urgentibus hinc atque inde fluctibus solveretur, non mortem metuens, sed ne vacuus mysterii exiret e vita, quos initiatos esse cognoverat, ab his divinum illud fidelium sacramentum poposcit, non ut curiosos oculos insereret arcanis, sed ut fidei suae consequeretur auxilium. Etenim ligari fecit in orario et orarium involvit in collo atque ita se deiecit in mare, non requirens de navis conpage resoluta tabulam, cui supernatans iuvaretur, quoniam fidei solius arma quaesierat. Itaque his se tectum atque munitum satis credens alia auxilia non desideravit. 44. Simul fortitudinem eius spectare licet, qui fatisciente remigio non quasi naufragus tabulam sumpserit, sed quasi fortis ex se ipso adminiculum suae virtutis adsumpserit. Nec deseruit spes nec fefellit opinio; denique primus servatus ex undis et in portum terrenae stationis evectus praesulem suum, cui se crediderat, recognovit, statimque ubi etiam ceteros servulos suos vel ipse liberavit vel liberatos conperit,	prevail, nor did the gate of heaven shut itself, but on the contrary he destroyed the vestibules of hell and threw open the things of heaven. Set therefore upon earth, he opened heaven and shut hell. ## De excessu fratris I §§ 43–48 — the Satyrus test: in agreement with the catholic bishops, that is, with the Roman church (CSEL 73, pp. 232–236) [[p. 232]] 43. Why then should I proclaim his devotion toward the worship of God? Before he had been initiated into the more perfect mysteries, caught in a shipwreck — when the ship in which he [[p. 233]] was being carried, dashed upon a rocky shoal and breaking up as the waves pressed on this side and that, was going to pieces — not fearing death, but lest he depart from life empty of the mystery, he asked, from those whom he had learned to be initiated, for that divine sacrament of the faithful — not to thrust curious eyes into the holy secrets, but to obtain the help of his faith. And indeed he had it bound up in a cloth (<i>orarium</i>), and wound the cloth about his neck, and so cast himself into the sea, not looking for a plank from the ship’s loosened frame by which he might be borne up as he swam, since he had sought the arms of faith alone. And so, believing himself sufficiently covered and defended by these, he desired no other aids. 44. At the same time one may observe his fortitude: that, when the oarage gave out, he took up no plank as a shipwrecked man, but, as a brave man, took to himself out of his own self the support of his own virtue. Neither did hope desert him nor expectation deceive him; for, first saved out of the waves and brought into the harbour of a resting-place on land, he recognized his own protector, to whom he had entrusted himself; and at once, when he had either himself freed the rest of his

<i>Latin</i>	<i>English</i>
neglegens facultatum nec amissa desiderans dei ecclesiam requisivit, ut ageret gratias liberatus et mysteria aeterna cognosceret, pronuntians nullum referenda gratia maius esse officium. Quodsi homini non referre simile homicidio iudicatum est, non referre deo quantum crimen est!	servants or found them freed, careless of his goods and not longing for what was lost, he sought out the church of God — to give thanks as one set free and to come to know the eternal mysteries — declaring that there is no duty greater than the returning of thanks. For if not to make a return to a man has been judged the like of homicide, how great a crime is it not to make a return to God!
[[p. 234]] 45. Est ergo prudentis agnoscere se ipsum, et, quemadmodum a sapientibus definitum est, secundum naturam vivere. Quid est enim tam secundum naturam quam referre auctori gratiam? Aspice caelum hoc! Nonne auctori refert gratiam, cum videtur? Caeli enim enarrant gloriam dei et opera eius adnuntiat firmamentum. Mare ipsum, cum sedatum atque tranquillum est, divinae serenitatis testatur indiciu[m], cum movetur, indignatio superna terrori est. Nonne omnes dei gratiam iure miramur, cum advertimus, quod insensibilis natura quadam sensibili ratione suos fluctus coerceat et fines suos unda cognoscat? Nam de terris quid loquar, quae divino oboedientes praecepto omnibus sponte animantibus pabulum subministrant atque id, quod acceperint agri, velut crescentibus usuris multiplicatum cumulat[um]que restituunt?	[[p. 234]] 45. It is therefore the mark of a prudent man to know himself and, as it has been defined by the wise, to live according to nature. For what is so much according to nature as to return thanks to one's author? Behold this heaven! Does it not return thanks to its author, when it is beheld? For <i>the heavens declare the glory of God, and the firmament proclaims his works</i> . The sea itself, when it is calm and tranquil, bears witness to a token of divine serenity; when it is stirred, the wrath from on high is a terror. Do we not all rightly marvel at the grace of God, when we observe that insensible nature by a kind of sensible reason restrains its own waves, and the wave knows its own bounds? For what shall I say of the lands, which, obedient to the divine command, of their own accord furnish food to all living things, and restore what the fields have received, multiplied and heaped up as if by growing interest?
46. Ergo ille, qui natura duce divini rationem operis igneo mentis vigore perceperat, scivit primo omnium servatori suo gratiam esse referendam. Sed quia referre non poterat, habere poterat; est enim huiusmodi gratiae vis, ut et, cum refertur, habeatur et habendo referatur. Referebat igitur gratiam, deferebat fidem. Nam qui	46. He then, who with nature for his guide had grasped the plan of the divine work by the fiery vigour of his mind, knew that thanks must be returned first of all to his Saviour. But because he could not return it, he could hold it; for such is the power of this kind of grace, that both, when it is returned, it is held, and, by being held, it is returned. He returned thanks, then, and rendered faith. For

<i>Latin</i>	<i>English</i>
tantum mysterii caelestis involuti in orario [[p. 235]] praesidium fuisset expertus, quantum arbitrabatur, si ore sumeret et toto pectoris hauriret arcano! Quam maius putabat fustum in viscera, quod tantum sibi tectum orario profuisset! 47. Sed non ita avidus, ut esset incautus; scimus enim plerosque aviditate studii praetermittere cautionem. Advocavit ad se episcopum nec ullam veram putavit nisi verae fidei gratiam percontatusque ex eo est, utrumnam cum episcopis catholicis, hoc est cum Romana ecclesia conveniret. Et forte ad id locorum in schismate regionis illius ecclesia erat; Lucifer enim se a nostra tunc temporis communione diviserat. Et quamquam pro fide exulasset et fidei suae reliquisset heredes, non putavit tamen fidem esse in schismate; nam etsi fidem erga deum tenerent, tamen erga dei ecclesiam non tenerent, cuius patiebantur velut quosdam artus dividi et membra lacerari. Etenim cum propter ecclesiam Christus passus sit et Christi corpus ecclesia sit, non videtur ab his exhiberi Christo fides, a quibus evacuatur eius passio corpusque distrahitur. 48. Itaque quamvis gratiae fenus teneret et metueret tanti nominis debitor navigare, tamen eo transire maluit, ubi tuto posset exolvere; iudicabat enim divinae solutionem gratiae [[p. 236]] in adfectu ac fide esse. Quam quidem statim, ubi primum copia liberior ecclesiae fuit, implere non distulit deique gratiam et accepit desideratam et servavit acceptam. Nihil	he who had experienced so great a protection from the heavenly mystery wrapped in a cloth, [[p. 235]] how much [protection] did he suppose [there would be] if he took it in his mouth and drank it into the whole depth of his breast! How much greater did he reckon that would be, poured into his vitals, which had so profited him merely covered in the cloth! 47. But he was not so eager as to be incautious; for we know that many, through eagerness of zeal, neglect caution. He called a bishop to himself and thought no grace true save that of the true faith, and inquired of him whether he was in agreement with the catholic bishops, that is, with the Roman church. And it happened that at that place the church of that region was in schism; for Lucifer [of Cagliari] had at that time separated himself from our communion. And although he had gone into exile for the faith and had left heirs of his faith, [Satyrus] did not think, even so, that faith could exist in schism; for though they held the faith toward God, yet they did not hold it toward the Church of God, whose limbs, as it were, they suffered to be divided and whose members to be torn. For since Christ suffered for the Church, and the Church is the body of Christ, faith does not seem to be shown to Christ by those through whom his passion is made void and his body is torn asunder. 48. And so, although he held [as it were] a loan of grace and, a debtor of so great a name, feared to sail, he nonetheless chose rather to cross over to where he might safely pay it off; for he judged that the payment of divine grace [[p. 236]] lay in disposition and in faith. And this indeed, as soon as there was a freer opportunity of the church, he did not delay to fulfil, and he both received the grace of God he had desired and preserved it once received. Nothing,

<i>Latin</i>	<i>English</i>
igitur ea prudentia sapientius, quae divina et humana secernit.	therefore, is wiser than that prudence which distinguishes the divine from the human.
## Ep. extra coll. 5 (Maur. 11) §§ 3–6 — the head of the whole Roman world, whence the rights of communion flow to all (CSEL 82/3, pp. 183–185)	## Ep. extra coll. 5 (Maur. 11) §§ 3–6 — the head of the whole Roman world, whence the rights of communion flow to all (CSEL 82/3, pp. 183–185)
Extra collectionem 5 (Maur. 11). Imperatoribus clementissimis et principibus Christianis gloriosissimis ac beatissimis Gratiano Valentiniano et Theodosio sanctum concilium quod convenit Aquileiae.	Letter outside the collection, 5 (Maurist 11). To the most merciful emperors and most glorious and most blessed Christian princes Gratian, Valentinian, and Theodosius, the holy council which met at Aquileia.
[[p. 183]] 3. Sed si unius {vos} miseratio inflectere potest, multo magis vos precatio omnium moveat sacerdotum. Quis enim nostrum ei communione societate iungetur, cum indebitum sibi gradum usurpare conatus nec iure ad eum potuerit pervenire, et quem importune affectavit importunissime repetere moliatur? Turbarum totiens damnatus incessit adhuc tamen, quasi praeteritis non perhorrescendus exemplis. Qui — quod plerique sicut in hoc concilio cognovimus et vidimus — cum Arrianis copulatus atque coniunctus erat [[p. 184]] eo tempore, quo turbare Mediolanensem ecclesiam coetu detestabili moliebatur cum Valente, nunc ante synagogae fores, nunc in Arrianorum domibus miscens occulta consilia et suos iungens, et, quoniam ipse aperte in eorum congregationes prodire non poterat, instruens et informans quemadmodum pax ecclesiae turbaretur; quorum furore respirabat quod eorum posset fautores et socios emereri.	[[p. 183]] 3. But if the pity [owed] to one man can sway you, much more should the entreaty of all the priests move you. For which of us will be joined to him in the fellowship of communion, seeing that he attempted to usurp a rank not owed to him, and could not lawfully attain to it, and now most inopportunistly strives to seek again what he inopportunistly coveted? So often condemned for riots, he has nonetheless pressed on even until now, as though not to be dreaded on the strength of past examples — he who (as most of us have learned and seen, as in this council) was coupled and joined with the Arians [[p. 184]] at the time when he was contriving to disturb the church of Milan by a detestable gathering, together with Valens: now before the doors of the synagogue, now in the houses of the Arians, mingling secret counsels and rallying his own [followers]; and, since he himself could not openly come forth into their assemblies, instructing and informing [them] how the peace of the church might be disturbed — by whose frenzy he took heart, because he could earn their support and alliance.

<i>Latin</i>	<i>English</i>
4. Cum igitur scriptum sit: Haereticum post unam correctionem devita, cum et alius vir sancto locutus spiritu dixerit declinandas huiuscemodi bestias nec salutatione recipiendas atque congressu, quomodo fieri potest ut eum, quem societati eorum insertum vidimus, non etiam assertorem perfidiae iudicemus? Quod etiam si deforet, tamen totius orbis Romani caput Romanam ecclesiam atque illam sacrosanctam fidem apostolorum ne turbari sineret obsecranda fuit clementia vestra; inde enim in omnes venerandae communionis iura dimanant. Et ideo petimus et rogamus ut obripiendi ei adimere dignemini facultatem. 5. Scimus clementiae vestrae sanctum pudorem, ne auditu vestro indigna ingerat, non aliena ab officio et nomine sacerdotis interstreat, non inverecunda vobis lo- [[p. 185]]quatur. Quem cum habere oportuerit testimonium etiam ab his qui foris sunt, quali testimonio cives proprii prosecuti sint clementia vestra meminisse dignetur. Pudet enim dicere, inverecundum est recensere, quam turpi famam eius convicio sauciaverint; quo saltem pudore perstrictus conticescere debuisset, et si haberet aliquam conscientiam sacerdotis, pacem ecclesiae concordiamque ambitioni suae et studio praeoptaret. Verum longe alienus ab omni verecundia per abscissum hominem Paschasium signiferum furoris sui missis litteris serit turbas, gentiles quoque et perditos concitare conatur. 6. Oramus ergo ut iam et populo Romano, qui post relationem	4. Since therefore it is written: A <i>heretic, after one correction, avoid,</i> and since another man too, speaking by the Holy Spirit, has said that beasts of this kind are to be shunned and received neither with greeting nor with company, how can it be that we should not judge him too an upholder of perfidy, whom we have seen inserted into their society? And even if this were lacking, still your clemency ought to have been implored not to allow the head of the whole Roman world — the Roman church — and that most holy faith of the apostles to be thrown into confusion; for from thence the rights of venerable communion flow forth unto all. And therefore we ask and beg that you deign to take from him the power of stealing his way in. 5. We know the holy modesty of your clemency — [which does not allow] that he force unworthy things upon your hearing, that he make a din with things foreign to the office and name of a priest, that he speak [[p. 185]] shamelessly before you. Since he ought to have testimony even from those who are outside, let your clemency deign to remember with what testimony his own fellow- citizens have pursued him. For it is shameful to say, it is a thing of no modesty to recount, with how base a reproach they have wounded his repute; struck by which shame he ought at least to have fallen silent, and, if he had any conscience of a priest, ought to have preferred the peace and concord of the church to his own ambition and partisanship. But utterly a stranger to all modesty, through a mutilated man, Paschasius, the standard-bearer of his fury, he sows disturbances by letters he sends, and attempts to stir up even pagans and lost men. 6. We pray, therefore, that you grant security — both now to the Roman

<i>Latin</i>	<i>English</i>
praefecti urbis pendet incertus, et nobis sacerdotibus securitatem indicta importunissimi hominis abiectione tribuatis. Quo impetrato apud deum omnipotentem patrem et filium eius dominum deum gratias iugi continuazione celebremus. ## Ep. extra coll. 7 — the Relatio of the synod on Ursinus and Damasus, complete (CSEL 82/3, pp. 191–197) Extra collectionem 7. Relatio (Romani concili ad Gratianum et Valentinianum Imperatores directa). [[p. 191]] 1. Et hoc gloriae vestrae, clementissimi principes, pietatisque est illustre documentum, quod innumeri fere ex diffusis Italiae partibus ad sublime sedis apostolicae sacrarium congregati, cum quaereremus quid pro ecclesiarum statu poscendum esset a vobis, nihil melius potuimus reperire quam quod spontanea vestri providentia contulistis. Videmus quod nec rogandi iam pudor esse debeat nec impetranda beneficia iam vestra sint et imperialium series decretorum pro nobis ambiat. Nam quod ad aequitatem petitionis attinet iamdudum meruimus impetrare quae poscimus, quod vero ad necessitatem spectat orandi ita impetratorum caremus effectu ut iterum impetrare cupiamus. Quod quidem, clementissimi principes, hominum perditorum exponit amentia(m), vestrae autem iustitiae munus [[p. 192]] accumulat, ut in ecclesia vestra beneficia saepius conferantur. 2. Namque a principio divino repleti spiritu et sanctorum apostolorum, quorum habetis in vestro honore suffragium,	people, who after the report of the prefect of the city hang in uncertainty, and to us the priests — by decreeing the casting-out of this most troublesome man. When this has been obtained, may we celebrate thanks to almighty God the Father and to his Son our Lord God in unbroken continuance. ## Ep. extra coll. 7 — the Relatio of the synod on Ursinus and Damasus, complete (CSEL 82/3, pp. 191–197) Letter outside the collection, 7. A Relatio (of the Roman council, directed to the emperors Gratian and Valentinian). [[p. 191]] 1. This too, most merciful princes, is an illustrious proof of your glory and piety: that, gathered almost past number from the scattered parts of Italy to the lofty shrine of the apostolic see, when we were asking what ought to be sought from you for the condition of the churches, we could find nothing better than what your own spontaneous providence has already bestowed. We see that now there ought to be no shame in asking, nor that the benefits to be obtained be now [merely] yours [to grant unasked], and that the series of imperial decrees court [them] on our behalf. For as concerns the equity of our petition, we have long since deserved to obtain what we seek; but as concerns the necessity of asking, we so lack the effect of what we [once] obtained that we desire to obtain it again. This indeed, most merciful princes, exposes the madness of abandoned men, but adds to [[p. 192]] the office of your justice, that in your church benefits may the more often be conferred. 2. For from the beginning, filled with the divine Spirit and with [the spirit] of the holy apostles — whose suffrage you have in the honour you

<i>Latin</i>	<i>English</i>
servantes in dominica religione praeceptum statuistis ad redintegrandum corpus ecclesiae quod furor Ursini, qui honorem arripere est conatus indebitum, diversas secuerat in partes, ut auctore damnato ceterisque, quos ad turbarum sibi incentiva sociaverat, sicut oportebat a perditu coniunctione divulsis de reliquis ecclesiarum sacerdotibus episcopus Romanus haberet examen, ut et de religione religionis pontifex cum consortibus iudicaret nec ulla fieri videretur iniuria sacerdotio, si sacerdos nulli usquam profani iudicis, quod plerumque contingere poterat, arbitrio facile subiaceret. 3. Praeclara ista plane et religiosus principibus digna sententia, quae divino ministerio plurimum deferat nec parcat errori. Quid enim dignius quam ut is demum iudicet de sacerdotis errato, qui vel internae conscientiae favorem sine periculo suo praestare se non posse cognoscat seque reatu implicet si absolvat indignum vel si damnet innoxium, qui postremo, dum iniuriam religionis ulciscitur, non eam in lateribus innocentium sed accusati quaerat in mori-[[p. 193]]bus? Quam multos etenim saepe patuit quos absolverint iudicia ab episcopis esse damnatos et quos iudicia damnaverint absolutos, ut melior eorum sit causa qui non saecularia iudicia sed divina pensantes abstulerint supplicium suum ne vexarentur innoxii, quam qui vitam suam tormentis innocentium probaverunt. Compluria texeremus, tranquillissimi principes, nisi esset iniuria	pay them — keeping the precept in the Lord's religion, you decreed, for the restoring of the body of the church which the fury of Ursinus (who attempted to seize an honour not owed to him) had cut into diverse parts, that — the author [of the schism] being condemned and the rest, whom he had allied to himself as incitements to riots, being (as was fitting) severed from the fellowship of that lost man — the Roman bishop should have the examination of the remaining priests of the churches, so that the pontiff of religion might judge concerning religion together with his colleagues, and no injury might seem to be done to the priesthood, if a priest were not easily made subject anywhere to the arbitration of some profane judge, which could often happen. 3. This is a plainly excellent judgment, worthy of religious princes — one that yields very much to the divine ministry, yet does not spare error. For what is more fitting than that he in the end should judge concerning a priest's fault who knows that he cannot, without peril to himself, grant even the favour of [his own] inward conscience, and who entangles himself in guilt if he absolves the unworthy or condemns the guiltless — who, finally, while he avenges the injury done to religion, seeks it not in the flanks of the innocent but in the character [[p. 193]] of the accused? For it has often been made plain how many, whom the [secular] courts have absolved, have been condemned by the bishops, and [how many] whom the courts have condemned [have been] absolved — so that the cause of those is the better who, weighing not secular judgments but divine, have taken away their own [right of] punishment lest the innocent be harassed, than [the cause] of those who have proved their own life by the torments of the innocent. We

<i>Latin</i>	<i>English</i>
asserī magis decreta imperialia quam teneri. 4. Sed quoniam licet iam dudum vestrae clementiae iudicio relegatus Ursinus per eos quos illicite sacrilegus ordinavit vilissimum quemque occulte licet sollicitare conatur eoque exemplo nonnulli episcopi qui male ecclesiis incubant usu temeritatis suae et profani conspiratione contemptus, ne acquiescant Romani sacerdotis iudicio, lacesuntur, ita ut etiam qui se intellegunt pro meritorum suorum ratione damnandos vel damnatos esse viderunt, redempta vulgi multitudine iudices suos terrore mortis exagitent contemptisque cognitoribus vel fugatis illicitum obtineant sacerdotium; idcirco statuti imperialis non novitatem sed firmitudinem postulamus. Indignum quippe est ut conventus quisque adhibita manu eo sit munitior quo flagitiosior fuerit. 5. Sicut Parmensis episcopus deiectus iudicio nostro ecclesiam tamen retinet impudenter. Damnatus aequae Florentius Puteolanus posteaquam deiectus est, cum aures tranquillitatis [[p. 194]] vestrae inquietasset atque huiusmodi rescriptum meruisset, ut si iudicio sacerdotum in urbe Roma fuisset depositus ne vocem quidem in iudiciis proferre deberet, post sextum annum repsit ad civitatem, tenuit ecclesiam, multas in oppido Puteolano, de quo deiectus fuerat, seditiones insolentia concitavit.	would weave together many instances, most tranquil princes, were it not an affront to be asserting imperial decrees rather than holding them fast. 4. But since — although Ursinus was long ago relegated by the judgment of your clemency — he attempts, through those whom, sacrilegious, he unlawfully ordained, to solicit secretly every vilest man; and since by his example certain bishops who wickedly squat upon churches, out of the habit of their own rashness and by a conspiracy of the profane, are stirred to contempt so as not to acquiesce in the judgment of the Roman priest — so that even those who understand that they are to be condemned by reason of their deserts, or who have seen that they have been condemned, buying up a crowd of the mob, harry their own judges with the terror of death and, the examiners being despised or put to flight, obtain an unlawful priesthood — therefore we ask not for novelty but for firmness of the imperial statute. For it is unworthy that any [defendant] gathering, with a band called in, should be the more fortified the more disgraceful he has been. 5. As the bishop of Parma, cast down by our judgment, nonetheless shamelessly retains his church. Likewise Florentius of Puteoli, condemned, after he was cast down — when he had disturbed the ears of your tranquility [[p. 194]] and had obtained a rescript of this sort, that if he had been deposed by the judgment of the priests in the city of Rome he should not so much as utter a word in the courts — after the sixth year crept back to the city, held the church, and by his insolence stirred up many seditions in the town of Puteoli from which he had been cast out.

<i>Latin</i>	<i>English</i>
6. Per Africam quoque Restitutum nomine causam dicere apud episcopos iussit vestra clementia; debuit acquiescere, sed idem saeva et insolentium manu a causae dicendae necessitate diffugit. 7. Per Africam rursum sacrilegos rebaptizatores nutu dei praecepistis expelli, sed ab expulsis Claudianus est ordinatus et ad perturbandam urbem Romam quasi episcopus destinatur, qui contra scripturae praecepta divinae, contra iura evangelica vacuos omnes mysteriorum atque ut eius verbum exprimamus paganos fuisse vel praeteriti temporis dicat episcopos vel praesentis. Quem quidem iussit tranquillitas vestra Roma pulsum patriam repetere propriam, sed contemptis iudiciis et quidem saepe constrictus residet tamen sollicitans pretio frequenter pauperiores et redemptos rebaptizare non veritus. Spoliatur magis eo quod fuerant consecuti quam tribuit, quod manifestum est bis non posse conferri. [[p. 195]] 8. Sic denique factio profecit Ursini, ut Isaac Iudaeo subornato, qui facto ad synagogam recursu caelestia mysteria profanavit, sancti fratris nostri Damasi peteretur caput, sanguis innocentium funderetur, componerentur doli quibus divino plane instinctu providentia vestrae pietatis occurrit, spoliaretur prope ecclesia omnibus ministeriis ea fraude videlicet, ut dum causam dicit qui in omnes iudex fuerat constitutus, nemo esset qui de lapsis vel certe de factiosis posset episcopatus inuasoribus iudicare.	6. Through Africa likewise your clemency ordered one Restitutus to plead his cause before the bishops; he ought to have acquiesced, but the same man, by a savage band of insolent men, fled from the necessity of pleading his cause. 7. Through Africa again, by the command of God, you ordered the sacrilegious rebaptizers to be expelled; but by the expelled Claudianus was ordained and is dispatched to Rome to disturb the city as a supposed bishop — he who, against the precepts of divine scripture, against the rights of the gospel, would say that all [bishops] were void of the mysteries and, to use his own word, pagans, whether of past time or of the present. And him indeed your tranquility ordered, driven from Rome, to seek again his own homeland; but, the judgments being despised, and though often constrained, he nonetheless sits, frequently soliciting the poorer folk for a price, and not fearing to rebaptize the redeemed. He despoils, rather, of what they had obtained than bestows, since it is plain that it cannot be conferred twice. [[p. 195]] 8. So, finally, the faction of Ursinus went so far that — a Jew, Isaac, being suborned, who by returning to the synagogue profaned the heavenly mysteries — the life of our holy brother Damasus was sought, the blood of the innocent was shed, and wiles were contrived which, by plainly divine prompting, the providence of your piety met; and the church was all but despoiled of all its ministries by this fraud, namely, that while he who had been constituted judge over all was pleading his own cause, there should be no one who could judge concerning the lapsed, or at least concerning the factious invaders of the episcopate.

<i>Latin</i>	<i>English</i>
9. Quia igitur vestrae iudicio tranquillitatis probata est innocentia memorati fratris nostri Damasi, integritas praedicata est, Isaac quoque ipse ubi ea quae detulit probare non potuit, meritorum suorum sortem tulit, quaesumus clementiam vestram, ne rursus in plurimis causis videamur onerosi, ut iubere pietas vestra dignetur, quicumque vel eius vel nostro iudicio qui catholici sumus fuerit condemnatus atque iniuste voluerit ecclesiam retinere vel vocatus a sacerdotali iudicio per contumaciam non adesse, seu ab illustribus viris praefectis praetorio Italiae vestrae sive a vicario accitus ad urbem Romam veniat aut, si in longinquiore partibus huiusmodi emergerit, quaestio ad metropolitanum per locorum iudicia deducatur examen vel, si ipse metropolitanus est, Romae necessario vel ad eos quos Romanus episcopus iudices dederit contendere sine dilatione iubeatur, ita ut qui depositi fuerint, ab eius tantum [[p. 196]] civitatis finibus segregentur in qua gesserunt sacerdotium, ne rursus impudenter usurpent quod iure sublatum sit. Certe si vel metropolitanus vel cuiusce alterius sacerdotis suspecta gratia vel iniquitas fuerit, vel ad Romanum episcopum vel ad concilium certe quindecim episcoporum finitimorum ei liceat provocare. Quicumque vero ita meruerit excludi, sileat et quiescat, et si dei iudicium non veretur, minus tamen peccare vel necessitate cogatur, ut saltem de cetero pacifici atque concordantes serenitati vestrae congruas apud deum	9. Since, therefore, by the judgment of your tranquility the innocence of our aforesaid brother Damasus has been proved and his integrity proclaimed, and Isaac too himself, when he could not prove what he had alleged, has borne the lot of his own deserts, we beg your clemency — lest we seem burdensome in very many cases — that your piety deign to command that whoever, whether by his [Damasus's] judgment or by ours who are catholic, shall have been condemned and shall unjustly wish to retain a church, or, when summoned by a priestly court, shall through contumacy fail to appear, shall — whether summoned by the illustrious men, the praetorian prefects of your Italy, or by the vicar — come to the city of Rome; or, if a matter of this kind arise in more distant parts, [that] the case be brought to the examination of the metropolitan through the courts of those places; or, if the metropolitan himself [is the accused], [that] he be ordered without delay to betake himself of necessity to Rome, or to those whom the Roman bishop shall have appointed as judges — so that those who have been deposed [[p. 196]] be separated from the bounds of that city only in which they exercised the priesthood, lest they shamelessly usurp again what has by right been taken away. Certainly, if the favour or the iniquity of a metropolitan, or of any other priest, be suspect, let it be permitted [to the accused] to appeal either to the Roman bishop, or at least to a council of fifteen neighbouring bishops. But whoever shall thus have deserved to be excluded, let him be silent and be still; and if he does not fear the judgment of God, let him at least be constrained by necessity to sin the less, so that henceforth, peaceable and concordant, we may be able to render fitting thanks for your serenity before our God.

*Latin**English*

nostrum referre gratias
possimus.

10. Memoratus frater noster
Damasus, quoniam in sua causa
vestri tenet insigne iudicii, non
fiat inferior his quibus etsi
aequalis est munere,
praerogativa tamen apostolicae
sedis excellit, ut iudiciis
publicis videantur esse subiecti,
quibus sacerdotale caput lex
vestra submovit. In quo post
sententiam non videtur
declinare iudicium, sed delatam
a vobis honorificentiam
flagitare. Nam quod ad leges
publicas pertinet, quae potest
esse vita munitior quam vestra
clementia qua innititur iudicata?
Quod vero ad praedicandam
episcopi conscientiam
severioribus se dedit ipse
iudiciis sacerdotum, a quibus
non nominis sed etiam morum
ratio pensatur, ne quis iterum
calumniator existens, dum
memoratum conatur appetere
virum, quidem ipsum non queat
laedere quem innocentia sua
munit, religioni tamen fiat
iniuria in vexationibus
ministorum.

[[p. 197]] 11. Accipite aliud
quoque quod vir sanctus vestrae
magis conferre pietati quam sibi
praestare desiderat nec derogare
cuiquam sed principibus
arrogare, quoniam non novum
aliquid petit sed sequitur
exempla maiorum, ut episcopus
Romanus si concilio eius causa
non creditur, apud concilium se
imperiale defendat; nam et
Silvester Romae a sacrilegis
accusatus apud parentem
vestrum Constantinum causam
propriam prosecutus est, et de
scripturis similia exempla
suppeditant, quod cum a
praeside sanctus apostolus vim
pateretur, Caesarem appellavit
et ad Caesarem missus est.

10. Our aforesaid brother Damasus,
since in his own case he holds the
mark of your judgment, let him not
be made inferior to those to whom,
though he is equal in office, he
nonetheless excels by the prerogative
of the apostolic see — so that they
[the other bishops] may seem to be
subject to the public courts, from
which your law has withdrawn the
priestly head. In which [matter], after
the sentence, he does not seem to
decline judgment, but to request the
honour conferred by you. For as
concerns the public laws, what life
can be better fortified than your
clemency, on which its verdicts rest?
But as concerns the commending of a
bishop's conscience, he has given
himself to the more severe judgments
of the priests, by whom the reckoning
not of the name only but also of the
morals is weighed — lest anyone
again, arising as a slanderer, while he
attempts to attack the aforesaid man,
though he cannot indeed harm him
whom his own innocence protects,
nonetheless do injury to religion in
the harassment of its ministers.

[[p. 197]] 11. Receive yet another
thing, which the holy man desires
rather to confer upon your piety than
to secure for himself — neither to
detract from anyone but to ascribe [it]
to the princes — since he seeks
nothing new but follows the
examples of the elders: that a Roman
bishop, if his cause is not entrusted to
a council of his own, may defend
himself before an imperial council.
For Silvester too, accused at Rome
by the sacrilegious, prosecuted his
own cause before your ancestor
Constantine; and from the scriptures
similar examples are supplied, in
that, when the holy apostle suffered
violence from a governor, he
appealed to Caesar and was sent to
Caesar. Certainly let your clemency

<i>Latin</i>	<i>English</i>
Certe prius examinet causam vestra clementia et si emerit quaestio interroganda distinguat, ut quemadmodum dudum estis censere dignati, factorum a iudice ratio quaeratur non arbitrium sententiae vindicetur. Ita enim fiet ut nulli perditio vel infami aut accusandi summi sacerdotis aut testificandi in eum facultas pateat illicita, si quidem non modo in episcopum sed ne in presbyterum quidem accusationem facile suscipiendam nisi idoneis testibus lectio sancta praescribat. Neque enim vel inimico vel calumniatori vel istiusmodi viris, quales nuper insimulatores patuit extitisse, tribuenda licentia est, quorum vita non mereatur fidem, tormenta abhorreat religio sacerdotis. ## Ep. extra coll. 15 (Maur. 42) §§ 4–5 — the creed the Roman church ever guards inviolate (A.D. 393; CSEL 82/3, pp. 304–306) Extra collectionem 15 (Maur. 42). Domino dilectissimo fratri Siricio Ambrosius Sabinus Bassianus et ceteri. [[p. 304]] 4. Quanta amentia funestorum latratuum ut idem dicerent Christum ex virgine non potuisse generari qui afferunt ex muliere editis humanorum pignorum partibus virgines permanere? Aliis ergo praestat Christus quod sibi ut dicunt praestare non potuit? Ille vero si carnem suscepit et si homo factus est ut hominem redimeret atque a morte [[p. 305]] revocaret, inu(s)itato tamen quasi deus munere venit in terris, ut quemadmodum dixerat: Ecce facio omnia nova, partu immaculatae virginis	first examine the cause, and if a question arise let it set out distinctly the matters to be inquired into, so that — just as you have lately deigned to decree — the account of the deeds may be sought from the judge, and not the arbitrary power of passing sentence be claimed. For thus it will come about that to no lost or infamous man shall the unlawful faculty lie open either of accusing the highest priest or of testifying against him — since holy reading prescribes that not only against a bishop but not even against a presbyter is an accusation to be readily received save on suitable witnesses. For neither to an enemy, nor to a slanderer, nor to men of that kind — such as lately were shown to have been the false accusers — is license to be granted, whose life may not deserve credence [and] whose torture the priest's religion abhors. ## Ep. extra coll. 15 (Maur. 42) §§ 4– 5 — the creed the Roman church ever guards inviolate (A.D. 393; CSEL 82/3, pp. 304–306) Letter outside the collection, 15 (Maurist 42). To the most beloved lord and brother Siricius, Ambrose, Sabinus, Bassianus, and the rest. [[p. 304]] 4. What madness in the barkings of these deadly men, that they say the same [self-contradicting] thing — that Christ could not be generated from a virgin — men who [yet] allege that women remain virgins after human offspring have been brought forth from a woman in birth-pangs! Does Christ then grant to others what, as they say, he could not grant to himself? But he indeed, if he took flesh and was made man to redeem man and call him back from death, [[p. 305]] nevertheless came upon earth by an unwonted gift, as befits God, that — as he had said: <i>Behold, I make all things new</i> — he might be born of the childbearing of

<i>Latin</i>	<i>English</i>
nasceretur et sicut scriptum est crederetur nobiscum deus. Sed de via perversitatis produntur dicere: Virgo concepit, sed non virgo generavit. Quae potuit ergo virgo concipere, non potuit virgo generare, cum semper conceptus praecedat, partus sequatur? 5. Sed si doctrinis non creditur sacerdotum, credatur oraculis Christi, credatur monitis angelorum dicentium: Quia non est impossibile deo omne verbum, credatur symbolo apostolorum, quod ecclesia Romana intemeratum semper custodit et servat. Audivit Maria vocem angeli et quae ante dixerat: Quomodo erit istud?, non de fide generationis interrogans respondit postea: Ecce ancilla domini, contingat mihi secundum verbum tuum. Haec est virgo quae in utero concepit, virgo quae peperit filium; sic enim scriptum est: Ecce virgo in utero accipiet et pariet filium, non enim [[p. 306]] concepturam tantummodo virginem sed et parituram virginem dixit.	an immaculate virgin, and, as it is written, be believed to be <i>God-with-us</i>. But out of the way of perversity they are brought to say: A virgin conceived, but not a virgin gave birth. Could a virgin, then, conceive, [but] a virgin not be able to give birth, since conception always goes before and birth follows? 5. But if the teachings of the priests are not believed, let the oracles of Christ be believed; let the admonitions of the angels be believed, who say: <i>For no word shall be impossible with God</i>; let the creed of the apostles be believed, which the Roman church ever keeps and preserves inviolate. Mary heard the voice of the angel, and she who had before said: <i>How shall this be?</i> — not asking out of doubt about the faith of [His] generation — answered afterward: <i>Behold the handmaid of the Lord; be it done to me according to thy word</i>. This is the virgin who conceived in the womb, the virgin who bore a son; for so it is written: <i>Behold, a virgin shall receive in the womb and shall bear a son</i> — for [Scripture] said [[p. 306]] not only that a virgin would conceive, but also that a virgin would give birth.